

Court No. - 21

Case :- WRIT - C No. - 7864 of 2014

Petitioner :- Gaurav Arya

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- Ashish Goyal

Counsel for Respondent :- C.S.C., Ashutosh Srivastava, Baleshwar
Chaturvedi

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi for respondent no. 2 and Sri Ashutosh Srivastava for the respondent no. 3.

The petitioner claims himself to be a shop owner bearing No. G-6, B-6 Taj Way Complex, Jeevani Mandi, Agra. He requires an electricity connection for his shop. Having applied for the same the application has not been processed so far nor the connection has been granted.

Learned counsel for the respondent no. 3 Sri Srivastava submits that since it relates to the shop in a Multi Storied Complex, therefore, the provision of Clause 4.9 of the Electricity Supply Code, 2005 will apply and the petitioner will have to bear such expenses.

On the other hand the petitioner contends that he is an individual who requires electricity connection only for his shop either permanent or temporary whichever may be permissible and for that the respondents obstruct the supply of electricity to the petitioner.

This writ petition is disposed of with a direction to the respondent no. 2 to examine the claim of the petitioner in accordance with rules and issue instructions in accordance with law within a period of six weeks' from the date of presentation of a certified copy of this order before him for grant of connection as may be permissible to the petitioner under rules.

Order Date :- 10.2.2014

Lalit Shukla